

25STCV18921 25STCV18921

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Case Number: 25STCV18921 Hearing Date: July 17, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

anthony blades, an individual; tammie oliphant, an individual

,

Plaintiffs,

vs.

Dr. mehrdad alemozaffar

, an individual; KAISER PERMANENTE INTERNATIONAL, a California nonprofit corporation; KAISER FOUNDATION HEALTH PLAN, INC., a California nonprofit corporation; KAISER FOUNDATION HOSPITALS, a California nonprofit corporation, and DOES 1 through 50,

Defendants.

Case

No.:

25STCV18921

Hearing

Date:

July

17, 2026

Time:

10:00 a.m.

[Tentative]

Order RE:

defendantS' demurrer to plaintiffs' first
amended complaint

MOVING PARTY: Defendants Mehrdad Alemozaffar, M.D.,
Kaiser Foundation Health Plan, Inc., Kaiser Foundation Hospitals, and Southern
California Permanente Medical Group

RESPONDING PARTY: Plaintiffs Anthony Blades and Tammie
Oliphant

Defendants' Demurrer to Plaintiffs' First Amended Complaint

The court
considered the moving, opposing, and reply papers.

BACKGROUND

Plaintiffs Anthony Blades ("Blades") and Tammie Oliphant ("Oliphant")
(collectively, "Plaintiffs") filed this action on June 27, 2025, against defendants
Dr. Mehrdad Alemozaffar, (Dr. Alemozaffar), Kaiser Permanente International,
Kaiser Foundation Health Plan, Inc., and Kaiser Foundation Hospitals
(hereinafter, "Kaiser") (collectively, "Defendants"). The operative First Amended Complaint (FAC)
was filed on February 13, 2026, and includes an additional defendant, Southern
California Permanente Medical Group (SCPMG). The FAC alleges causes of action for (1)
professional negligence and (2) loss of consortium.

In the FAC, Plaintiffs allege the following. Dr. Alemozaffar is a urology practitioner in the State of California. (FAC, ¶ 4.) In early spring 2023, Defendants diagnosed Blades with prostate cancer. (FAC, ¶ 14.) Blades and Defendants decided Blades should undergo a prostatectomy, a procedure to remove Blades' prostate. (FAC, ¶ 14.) On or around April 11, 2023, Alemozaffar performed the prostatectomy. (FAC, ¶ 15.) During the procedure, Defendants breached the wall of Blades' rectum, leading to a vesico-rectal fistula formation. (FAC, ¶ 16.) After surgery, Defendants placed "a surgical drainage system in Blades to remove and measure the excess fluids in the affected areas." (FAC, ¶ 16.) On April 14, 2024, Defendants recklessly removed the surgical drainage system, without recognizing that the fluid was consistent with urine. (FAC, ¶ 17.)

After the removal, Blades experienced severe abdominal pain. (FAC, ¶ 18.) Oliphant took Blades to the emergency room around eight hours after removal of the surgical system. (FAC, ¶ 18.) Blades was admitted to Kaiser's medical center. (FAC, ¶ 18.) Blades' pain and condition worsened, and Blades "developed a urinoma requiring placement of nephrostomy tubes, massive pulmonary embolism requiring placement of an inferior vena cava filter, atrial fibrillation requiring anticoagulation, pelvic hematoma, and vesico-rectal fistula formation requiring a colostomy." (FAC, ¶ 19.) Blades remained hospitalized until June 4, 2023. (FAC, ¶ 20.) This caused Blades to suffer emotional distress, believing he may die from the life-threatening medical conditions. (FAC, ¶ 20.) Blades was unable to see outside medical care and only saw Kaiser doctors and medical staff. (FAC, ¶ 21.)

Defendants never informed Blades that he suffered a pulmonary embolism, despite family history. (FAC, ¶ 22.) Defendants never mentioned Defendants' removal of Blades' prostate as a cause of his condition. (FAC, ¶ 23.) Blades believed his injuries were a consequence of cancer, rather than a negligent cause, relying on Defendants' skill and judgment. (FAC, ¶ 24.) Defendants cared for Blades until over a year after his hospitalization. (FAC, ¶ 24.) Defendants placed many tubes and bags in Blades' body. (FAC, ¶ 25.)

Once released from Defendants' care, Blades was unable to walk. (FAC, ¶ 25.) Blades used a wheelchair and assistance from others. (FAC, ¶ 25.) Blades could not control his urination or defecation. (FAC, ¶ 25.) He was still weak and feeble. (FAC, ¶ 25.)

Blade's condition remained the same until September 2023. (FAC, ¶ 26.) He remained in bed unless he visited Defendants' medical staff. (FAC, ¶ 26.) Defendants hoped Blades' rectum wall would heal itself, without further corrective measures. (FAC, ¶ 26.) Despite frequent visits to Blade's home by Alemozaffar and an at-home-nurse, Blades visited the emergency room on at least two more occasions. (FAC, ¶ 26.)

In September 2023, Defendants referred Blades to the USC Institute of Urology (USC) for further treatment. (FAC, ¶ 27.) Defendants remained Blades' insurance carrier and medical providers. (FAC, ¶ 27.) Further corrective surgeries were performed by USC, but Defendants required that all tests performed on Blades be performed by Defendants and all work USC wanted to perform on Blades be approved by Defendants. (FAC, ¶ 27.) USC expressed disagreement with Defendants' decision to wait so long to see if Blades' rectal wall would heal on its own, but USC did not put Plaintiffs on notice that Defendants caused any actual breach of the rectal wall. (FAC, ¶ 28.)

In September 2023, April 2024, and November 2024, Blades underwent three further corrective surgeries. (FAC, ¶ 30.) During that time, Blades was barely ambulatory, suffered from emotional distress and cognitive impairment, and was unable to control his bodily functions. (FAC, ¶ 30.) Blades underwent 60 total, twice-weekly hyperbaric chamber sessions at UCLA. (FAC, ¶ 31.) Blades was almost entirely dependent on Oliphant as his primary caretaker. (FAC, ¶ 31.) Blades used a walker until weeks after treatments ended, and his feet suffered nerve damage, a lingering symptom of pulmonary embolism. (FAC, ¶ 31.) Throughout this time, Plaintiffs still believed the cancerous prostate caused Blades' medical condition. (FAC, ¶ 33.)

On or around September 15, 2024, Blades ran into an old colleague. (FAC, ¶ 36.) Blades' colleague broached the idea that Defendants negligently performed Blades' initial surgery and post-surgical care, prompting Blades to seek legal counsel. (FAC, ¶ 36.) It was not until this conversation with Blades' colleague that Blades became aware of Defendants' potential medical negligence. (FAC, ¶ 36.) Thereafter, while investigating, Plaintiffs learned, on information and belief, that Alemozaffar made comments to third parties indicating he was aware of Defendants' medical negligence. (FAC, ¶ 37.) The culmination of Blades's injuries, hospitalizations, rehabilitation efforts, and physical and mental impairments led to the delayed discovery in September 2024. (FAC, ¶ 39.)

Blades will have lifelong physical and mental impairments that will prevent Blades from working. (FAC, ¶

38.) Oliphant, Blades' spouse, suffered loss of consortium. (FAC, ¶ 40.)

Defendants now demur to the first and second causes of action in the FAC on the grounds that each fails to state facts sufficient to constitute a cause of action pursuant to Code of Civil Procedure section 430.10, subdivision (e). Defendants also demur to the entire complaint, alleging that it is barred by the one-year statute of limitations under Code of Civil Procedure section 340.5. Plaintiffs oppose the demurrer.

LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10(f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

The court overrules the demurrer based on statute of limitations. Plaintiffs' complaint is not clearly and affirmatively barred by the statute of

limitations. (Roman v. County of Los Angeles (2000) 85 Cal.App.4th 316, 324-325 ["If the dates establishing the running of the statute of limitations do not clearly appear in the complaint, there is no ground for general demurrer"]; CrossTalk Productions, Inc. v. Jacobson (1998) 65 Cal.App.4th 631, 635 ["demurrer based on an affirmative defense cannot properly be sustained where the action might be barred by the defense, but is not necessarily barred"].)

Delayed discovery sufficiently
pled

"In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." (Code Civ. Proc., § 340.5.)

As used in section 340.5, "injury" means a person's physical condition and its negligent cause. (Gutierrez v. Mofid (1985) 39 Cal.3d 892, 896.) The injury is not necessarily the ultimate harm suffered but instead occurs when appreciable harm is first manifested. (Brewer v. Remington (2020) 46 Cal.App.5th 14, 24.) Whether there has been a belated discovery of the cause of action in malpractice cases essentially is a question of fact, and only where reasonable minds can draw but one conclusion from the evidence does the question become a matter of law. (Drexler v. Petersen (2016) 4 Cal.App.5th 1181, 1188-1189.)

Section 340.5's discovery rule "sets forth two alternate tests for triggering the limitations period: (1) a subjective test requiring actual suspicion by the plaintiff that the injury was caused by wrongdoing; and (2) an objective test requiring a showing that a reasonable person would have suspected the injury was caused by wrongdoing. The first to occur under these two tests begins the limitations period." (Kitzig v. Nordquist (2000) 81 Cal.App.4th 1384, 1391.) Under the first test, the plaintiff need only suspect someone has done something wrong, which does not require the plaintiff to know the specific facts (e.g., medical cause, diagnosis) necessary to establish a medical negligence claim. (Norgart v. Upjohn Co. (1999) 21

Cal.4th 383, 397–398; *Knowles v. Superior Court* (2004) 118 Cal.App.4th 1290, 1295.)

“A patient is charged with presumptive knowledge of his negligent injury, and the statute commences to run, once he has notice or information of circumstances to put a reasonable person on inquiry, or has the opportunity to obtain knowledge from sources open to his investigation. It is irrelevant that the plaintiff is ignorant of his legal remedy or the legal theories underlying his cause of action.” (*Carillo v. County of Santa Clara* (2023) 89 Cal.App.5th 227, 234-235.)

For purposes of the 1-year statute, “the accrual date is delayed until plaintiff is aware of her injury and its negligent cause.” (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1109.) The date plaintiff “should have discovered” the injury is when plaintiff suspects or a reasonable person would have suspected that plaintiff’s “injury” was caused by wrongdoing. (*Id.* at pp. 1110–1111.) “So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her.” (*Ibid.*)

“[T]he plaintiff discovers the cause of action when he at least suspects a factual basis, as opposed to a legal theory, for its elements, even if he lacks knowledge thereof--when, simply put, he at least suspects that someone has done something wrong to him, ‘wrong’ being used, not in any technical sense, but rather in accordance with its ‘lay understanding.’” (*Norgart, supra*, 21 Cal.4th 383, 397-398.) “A plaintiff need not be aware of the specific ‘facts’ necessary to establish the claim; that is a process contemplated by pretrial discovery. Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her.” (*Dolan v. Borelli* (1993) 13 Cal.App.4th 816, 822.)

Blades alleges he suffered injuries as a result of a prostatectomy performed by Defendants on April 11, 2023.

(FAC, ¶15.) Blades alleges his rectal wall was breached leading to a vesico-rectal fistula formation. (*Id.* at ¶16.) Due to Defendants’ negligence on that date, Plaintiff was hospitalized for two months until June 4, 2023 and bedridden

after release until September 2023.

(FAC, ¶¶20-26.) Blades was

referred in September 2023 to the USC Institute of Urology and underwent three corrective surgeries following Defendants' referral in September 2023, April 2024 and November 2024. (Id. at

¶30.) Plaintiffs allege that the

physicians at USC disagreed with Defendants' decision to "wait and see" if Blades's rectal wall would heal on its own.

(Id. at ¶28.)

Plaintiffs alleges Blades was extremely ill after the prostatectomy

and describes his condition as "barely ambulatory," suffering from urinary and fecal incontinence and subject to twice-weekly hyperbaric chamber sessions at

UCLA. (Id. at ¶¶30-32.) Blades felt constantly ill even after the

April 2024 corrective surgery. (Id.

at ¶34.)

Plaintiffs believed the injury and the corrective surgeries were due

to Blades's cancerous prostate, not any negligence by the Defendants. (Id. at ¶33.) Plaintiffs alleges Blades did not contemplate

that the original injury (breach of the rectal wall) and all subsequent

remedial measures were due to Defendants' negligence until September 15, 2024,

when a former colleague mentioned the possibility after seeing his

condition. (Id. at ¶36.) Plaintiffs allege Defendants never mentioned

that removal of his prostate was a potential cause of his afflictions, nor did

they discuss how the injury occurred. (Id.

at ¶23.)

Based on Plaintiffs' allegations, reasonable

minds could differ as to whether the events after April 11, 2023 should have placed Plaintiffs on inquiry notice. A

plaintiff is on inquiry notice "when the plaintiff suspects or should suspect

that her injury was caused by wrongdoing, that someone has done something wrong to her." (Jolly, *supra*, 44

Cal.3d at p. 1110.) For purposes of the

one-year period, discovery of the injury means the plaintiff has discovered

"both his or her injury and its negligent cause." (Gutierrez, *supra*, 39 Cal.3d at p. 896.)

The court must accept as true

Plaintiffs' allegations of delayed discovery, including their allegation that they believed the injury was due to Blades's cancer, not Defendants' negligence. (Fox, supra, 35 Cal.4th at p. 811 ["we must assume to be true Fox's allegations that she 'did not discover, nor suspect, nor was there any means through which her reasonable diligence would have revealed, or through which she would have suspected..." defendant's product caused her injury until deposition of surgeon]; see generally, 5 Witkin, Cal. Proc. (6th ed. 2026), §725 ["Intent, like knowledge, is a fact."]).

In order for the action to be clearly and affirmatively time-barred on demurrer, the court would have to find that reasonable minds could only conclude based on the allegations that Plaintiffs should have known or suspected that Defendants' negligence caused Blades's injury. While it would be unreasonable for Plaintiffs to claim that they did not know that the prostatectomy had "gone wrong," it was not unreasonable as a matter of law for Plaintiffs to believe that it had "gone wrong" because of Blades's cancer, as opposed to Defendants' wrongdoing. The court cannot make such a finding based simply on the fact that corrective surgeries were required and plaintiff Blades suffered serious and debilitation injuries after the prostatectomy. Defendants must identify factual allegations indicating that reasonable persons could only conclude that the injury (breach of the rectal wall) and the corrective surgeries were due to Defendants' negligence, e.g. a statement by other doctors that such an injury was the result of negligence or wrongdoing or facts supporting *res ipsa loquitur*.

Defendants fail to identify any factual allegations from which the court can find as a matter of law that it was objectively unreasonable for Plaintiffs to believe that plaintiff Blades's injuries were due to his cancer. Defendants ask, "[f]undamentally, defendants question what was being 'corrected' if there was no negligence?" (Opposition, 4:21-23.) Defendants' question assumes that surgeries can only go wrong and require corrective surgeries if there was negligence. The court cannot make that assumption, nor are there any facts alleged from which the court can conclude on demurrer that the type of injury suffered by Blades does not occur absent negligence.

As stated in Carillo, a

“patient is charged with presumptive knowledge of his negligent injury...once he has notice or information of circumstances to put a reasonable person on inquiry, or has the opportunity to obtain knowledge from sources open to his investigation.” (Carillo, *supra*, 89 Cal.App.5th at 234-235.)

Plaintiffs' allegations do not establish as a matter of law that a reasonable person would have been placed on inquiry notice, as a result of the prostatectomy, the physical injury experienced during recovery or the corrective surgeries. There are also no factual allegations establishing that Plaintiffs had the opportunity to obtain knowledge that the rectal wall breach was due to Defendants' wrongdoing by examining sources open to Plaintiffs' investigation. In fact, Plaintiffs allege that Defendants controlled Blades's care at all times, never indicated the injury was the result of any wrongdoing, provided him with reassurances and concealed their medical negligence. (FAC, ¶¶21-24, 29.) Plaintiffs are not claiming ignorance of available legal remedies or the legal theories underlying their causes of action. Plaintiffs are claiming ignorance of the fact that plaintiff Blades's injuries were the result of wrongdoing, as opposed to being a consequence of his cancer.

Carillo is also factually distinguishable. The plaintiff in Carillo alleged he was forced to undergo an amputation of his right foot after a nurse popped a blister on that foot and left the wound open and exposed. (Carillo, *supra*, 89 Cal.App.5th at p. 230.) Plaintiff allegedly objected to the nurse popping the blister. (*Ibid.*) The chain of events alleged in Carillo left no room for doubt that “a reasonable person suffering Plaintiff's injury would have suspected by the end of December 2017 that medical care provided by the nurse before the infection developed had something to do with the injury and that reasonable person would have been on inquiry notice by the end of December 2017.” (*Id.* at p. 232.)

Blades's injury occurred during surgery. There are no allegations that Plaintiffs were contemporaneously aware of the specific injury-causing conduct or that they objected to it as it was occurring. Unlike Carillo, Plaintiffs do not allege facts establishing a clear chain of causation from a clearly identified wrongful act to which they objected and plaintiff Blades's injury.

The court also previously stated that “while Blades's injuries and

impairments may show the inability to have made earlier discovery, Plaintiffs did not 'specifically plead facts to show...the time and manner of discovery' of the injuries that are the subject of this action." (January 23, 2026 Minute Order.) "Generally speaking, a cause of action accrues at the time when the cause of action is complete with all of its elements. The 'discovery rule' is an exception to this general rule and postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action. To rely on the discovery rule for delayed accrual of a cause of action, a plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery...." (Carrillo, *supra*, 89 Cal.App.5th at p. 234.)

The court already acknowledged in its prior ruling that Blades's prior allegations of injuries and impairments were sufficient to allege his inability to discover Defendants' wrongdoing earlier. Blades's amendments further establish that inability. Plaintiffs also allege Blades only discovered his cause of action after a conversation with an old colleague who suggested Blades's condition was due to negligence in performing the surgery and administration of post-surgical care. (FAC, ¶36.) Blades sufficiently alleges the circumstances of his discovery of his cause of action.

In overruling the demurrer, the court applies several fundamental principles. The case law consistently states that resolution of a statute of limitations issue is "normally," "generally" and "typically" a "question of fact." (Fox, *supra*, 35 Cal.4th at p. 810; Rosas v. BASF Corp. (2015) 236 Cal.App.4th at 1394; Alexander, et al. v. Exxon Mobil, et al. (2013) 219 Cal.App.4th 1236, 1252.) It can only be resolved as a question of law if the undisputed facts would "support only one reasonable conclusion" and the facts "do not leave any room for reasonable differences of opinion." (Alexander, *supra*, 219 Cal.App.4th at p. 1252.) Resolution of the statute of limitations, including whether a plaintiff knew or should have known of defendant's wrongdoing, is therefore presumptively a question of fact that should not be determined on demurrer and those occasions where it can be determined as a question of law on demurrer are the exception. (See e.g., Jolly, *supra*, 44 Cal.3d at p. 1109 [undisputed evidence on summary judgment showed that plaintiff suspected that

her injuries were due to her mother's ingestion of diethylstilbestrol as early as 1972 and limitations period began to run as of that date]; Norgart, supra, 21 Cal.4th at p. 407 [summary judgment properly granted on statute of limitations grounds where undisputed evidence established that plaintiffs' daughter committed suicide by ingesting Halcion and they were informed of that fact soon after her death; plaintiffs had reason to discover their cause of action against drug manufacturer at that time].) Plaintiffs' complaint does not fall within that exception.

The court is also obligated to construe the allegations of the complaint liberally. (Sproul v. Vallee (2025) 116 Cal.App.5th 285, 293.) The court must "construe all factual allegations in the complaint in [plaintiff's] favor." (Lee v. Hanley (2015) 61 Cal.4th 1225, 1229, 1230.) Thus, in Lee, the Supreme Court found that demurrer was erroneously sustained where "on at least one reasonable construction of the complaint, at least one of [plaintiff]'s claims is not time-barred." (Id.) The court finds the same to be true here. Under at least one reasonable construction of Plaintiffs' allegations, the complaint is not time-barred based on delayed discovery.

Tolling under Code of Civil Procedure section 340.5

"In no event shall the time for commencement of legal action exceed three years unless tolled for any of the following: ... (2) intentional concealment...." (Code Civ. Proc. § 340.5.) "Intentional concealment" requires specific allegations of affirmative acts beyond the exercise of poor judgment or mere omissions. (Nichols v. Alghannam (2026) 118 Cal.App.5th 726, 740.) Plaintiffs' allegations of intentional concealment are as follows: (1) plaintiff Blades was unable to see outside medical providers and relied only on Kaiser Defendants' hospital staff and doctors; (2) Defendants controlled all information as to plaintiff Blades's condition; (3) Defendants never informed him that he was suffering from a pulmonary embolism; (4) Defendants never mentioned the removal of his prostate as a potential cause of his afflictions; (5) Defendants never spoke about how the injury occurred, only on how to fix it; (6) the circumstances allowed Defendants to conceal their medical negligence; and (7) Plaintiffs relied on Defendants' reassurances.

Taking those allegations as true at the demurrer stage, Plaintiffs fail to allege intentional concealment.

Plaintiffs allege concealment but there are no allegations that the concealment was intentional, nor do Plaintiffs allege affirmative acts that would qualify as intentional concealment, e.g., refraining from discussing the cause of plaintiff Blades's injury to conceal Defendants' negligence or failing to make a note in plaintiff Blades's chart regarding the cause of his injury in order to conceal Defendants' negligence.

Plaintiffs only state that the conditions alleged at paragraphs 21-24 and 29 allowed for Defendants to "conceal," not "intentionally conceal," the cause of his injury. (Nichols, *supra*, 118 Cal.App.5th at p. 740 (allegation that treating physician allowed medical provider responsible for management of plaintiff's pain to examine her to "conceal" his negligence failed to allege intentional concealment under Code of Civil Procedure section 340.5); *Donabedian v. Manzer* (1986) 187 Cal.App.3d 1021, 1027 (allegation that defendants "concealed" their negligence was conclusory and did not allege that defendants "intentionally concealed" defendants' negligence).) There are no allegations that Defendants engaged in any affirmative acts with the intention to conceal Defendants' negligence or the cause of plaintiff Blades's injury.

Equitable tolling

"The Court of Appeal correctly described one scenario under which equitable tolling may apply: if a plaintiff pursues one of several available legal remedies, causing it to miss the statute of limitations for other remedies it later wishes to pursue. Yet such facts are far from the only circumstances under which the doctrine may apply. To determine whether equitable tolling may extend a statute of limitations, courts must analyze whether a plaintiff has established the doctrine's three elements: timely notice to the defendant, lack of prejudice to the defendant, and reasonable and good faith conduct by the plaintiff." (Saint Francis Memorial Hospital v. State Dept. of Public Health (2020) 9 Cal.5th 710, 725–726; *Metabyte, Inc. v. Technicolor S.A.* (2023) 94 Cal.App.5th 265, 278 [if requirements of equitable tolling "could be satisfied only by pursuing a legal remedy to lessen damages in a different forum, then a legal remedy to lessen damages would de facto be a requirement of equitable tolling. It is not."]) Thus, pursuit of one of several available legal remedies is not a required element of equitable tolling; it is only "one

scenario under which equitable tolling may apply.” (Id.)

Equitable tolling is therefore not inapplicable as a matter of law merely because Plaintiffs were not pursuing one of multiple legal remedies during the requested period of tolling.

Plaintiffs fail, however, to identify any allegations in support of the notice element. In opposition,

Plaintiffs identify the Notice of Intent to Sue mailed in March 2025. (Amadi Dec., Ex. G.) The Notice of Intent to Sue is evidence

extrinsic to the FAC and may not be considered on demurrer.

As for lack of prejudice to Defendants, Plaintiffs argue Defendants suffer no relevant prejudice because application of equitable tolling will not prevent Defendants from defending any claim on the merits. Plaintiffs argue Defendants have already produced much of Blades’s medical records.

(Amadi Dec., ¶15.) Plaintiffs

argue the latest corrective surgery occurred months before service of the Notice of Intent. These are all facts

outside of the FAC and cannot be considered on demurrer. These facts also do not support a finding that Defendants will be able to defend their claims on the merits.

Plaintiffs’ FAC sufficiently alleges their reasonable and good faith conduct in pursuing their claims. “Equitable tolling applies only in carefully considered situations to prevent the unjust technical forfeiture of causes of action.

It does not, as courts have explained, extend to garden variety claims of excusable neglect.” (Saint Francis,

supra, 9 Cal.5th at 729–730.) Equitable

tolling only applies where the plaintiff’s conduct was both objectively reasonable and subjectively in good faith.

(Id.) As discussed above,

Plaintiffs did not timely file a complaint against Defendants because plaintiff Blades’s health was in dire straits after the prostatectomy and Plaintiffs allege sufficient circumstances to plead delayed discovery.

Plaintiffs fail to allege facts in support of the notice or lack of prejudice elements of the equitable tolling doctrine. Plaintiffs therefore cannot rely on equitable tolling to avoid demurrer based on statute of limitations.

Equitable Estoppel

"In the statute of limitations context, equitable estoppel may be appropriate where the defendant's act or omission actually and reasonably induced the plaintiff to refrain from filing a timely suit. The requisite act or omission must involve a misrepresentation or nondisclosure of a material fact bearing on the necessity of bringing a timely suit." (DOE v. Marten (2020) 49 Cal.App.5th 1022, 1028-1029.) "[E]ven a defendant who is ignorant or mistaken as to the real facts may be equitably estopped if the defendant was in such a position that he or she ought to have known the true facts. This means that an estoppel may be created where the defendant harbored no intent to mislead and did not engage in actual fraud or bad faith. Rather, it is enough that the defendant's conduct 'induced' the plaintiff to delay commencement of an action." (Id.)

Plaintiffs argue the FAC alleges Defendants' knowledge of their own medical malpractice, citing to paragraphs 16, 20-21. Plaintiffs allege that Defendants breached Plaintiff's rectal wall at the time of the prostatectomy.

(FAC, ¶16.) Plaintiffs do not clearly and explicitly allege that Defendants knew that they breached Plaintiff's rectal wall and knew that their doing so was the result of negligence. If Plaintiffs were to allege that Defendants knew their negligence caused the breach in plaintiff Blades's rectal wall and intentionally concealed that fact from Plaintiffs, grounds to apply equitable estoppel would sufficiently alleged. As pled, Defendants are not equitably estopped from asserting the statute of limitations as a defense.

ORDER

For the reasons set forth above, the court overrules Defendants' demurrer to the first and second cause of action alleged in Plaintiffs' First Amended Complaint.

The court orders Defendants to file an answer to the First Amended Complaint within 20 days of the date of this order.

The court orders Plaintiffs to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 17, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court